

**CREDITOR'S ADJUSTMENT BUREAU, INC. v
CALIFORNIA CONSTRUCTION and ADU's INC.**

24CF14832

PLAINTIFF'S MOTION TO STRIKE ANSWER

This case involves a dispute over premium payments for a worker's compensation policy. Now before the Court is Plaintiff's Motion to Strike Answer.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED**, without prejudice to refile.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

RICE, et al. v NELSON, et al.

24CV47449

**DEFENDANT McCORMICK'S MOTION TO STRIKE PORTIONS OF
THE FIRST AMENDED COMPLAINT**

On June 18, 2024, Plaintiffs filed their Complaint against Defendants Sharon Nelson, Mark Nelson (collectively, "Sellers") and Wendy McCormick ("McCormick") arising out of a real estate transaction between Plaintiffs and the Sellers.

On November 6, 2024, the Court sustained in part, and overruled in part, the demurrer filed by Defendant McCormick. At that time, the court also granted in part, and denied in part, the motion to strike. Plaintiffs filed a First Amended Complaint ("FAC") on December 18, 2024.

Now before the Court is Defendant McCormick's motion to strike portions of the First Amended Complaint.

I. FACTS AND PROCEDURAL HISTORY

The facts and procedural history were laid out in detail in the Court's November 6, 2024, ruling. In short, this case involves the purchase of real property ("Property") by Plaintiffs and their subsequent discovery of multiple structural issues with the Property.

In the original complaint, Plaintiffs brought causes of action against McCormick for violation of Cal. Code section 2079, constructive fraud, negligent misrepresentation, and breach of fiduciary duty. The Court sustained (with leave to amend) the demurrer to the section 2079 cause of action. In doing so, the Court found that section 2079 requires either a written contract between McCormick and Plaintiffs or that McCormick was a "a broker who acts in connection with that broker to find and obtain a buyer." Accordingly, the Court found that the Complaint did not allege a duty on the part of McCormick towards the Plaintiffs.

The Court also granted the motion to strike portions of the Complaint on the grounds that Plaintiff had not alleged a statute entitling them to attorney's fees and had also not alleged facts giving rise to malice as required for punitive damages.

II. LEGAL STANDARD FOR MOTION TO STRIKE